

23STCV13712 23STCV13712

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Case Number: 23STCV13712 Hearing Date: August 19, 2026 Dept: 510

No.

6 - Alla Anatolyevna Zorikova v. Victoria Murcia, et al.

Plaintiff

Alla Anatolyevna Zorikova's Four Motions to Compel Further Responses to Special Interrogatories

Plaintiff

Alla Anatolyevna Zorikova moves to compel Defendants Luis Hidalgo and Victoria Murcia to serve further responses to four sets of special interrogatories.

Meet

and Confer

Motions

to compel further responses must include "a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2030.300(b)(1).) The moving party must make a "reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040 [emphasis added].) "[T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1439.) This rule aims "to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order." (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293.)

Plaintiff

did not meet and confer in good faith before filing the instant motions.

Plaintiff

filed two of the four discovery motions on June 1, 2026. In her declaration, Plaintiff claims that she sent a meet and confer letter on May 30 and June 1, 2026 to Defense counsel, which outlined the deficiencies in Defendants' responses. (Zorikova Decl., ¶ 5.) Plaintiff claims her meet and confer letters are attached as Exhibit C; however, the email chain attached as Exhibit C does not constitute any effort to meet and confer in good faith about any specific deficiencies. Instead, on May 30, Plaintiff states: "Please provide responses without objections in Luis Hidalgo's responses to Interrogatories Set 3. Failure to pro [sic] will lead to Motion," among other things. This is not a request to meet and confer in good faith.

According

to Plaintiff's own papers, she served the discovery requests on April 25 and 26, 2026, and Defendants served their responses on May 27, within the 30-day deadline (extended by two court days for electronic service). Therefore, Defendants' responses were timely, and Plaintiff should not have filed these discovery motions within two days of notifying Defense counsel of her displeasure with Defendants' responses.

The

Court notes that a similar pattern repeats for the remaining two discovery motions that Plaintiff filed on June 29, 2026. Plaintiff attests that she sent a meet and confer letter only two days before filing the motions. (Zorikova Decs., ¶ 5.)

This

is not meeting and conferring in good faith. After serving discovery requests, Plaintiff should be willing and prepared to meet and confer on each request if necessary to exhaust her obligations under the Civil Discovery Act. However, for the sake of judicial efficiency, the Court will turn to the merits of the motions. The Court notes that future failures to meet and confer in good faith could result in sanctions against the offending party.

Set

3

Plaintiff moves to compel Defendant Hidalgo

to provide further responses to special interrogatories, set three, nos. 61-70.

A requesting party may move to compel further responses if "[a]n answer to a

particular interrogatory is evasive or incomplete,” or “[a]n objection to an interrogatory is without merit or too general.” (Code Civ. Proc., § 2030.300(a).)

Defendant Hidalgo’s substantive response to no. 61 is proper. The request seeks contact information of a man named Michael. Defendant Hidalgo responded that he did not know the man’s last name or have any contact information. This is a straightforward response to the question asked.

Defendant Hidalgo also properly objected to nos. 62-70 as being unintelligible, vague, and ambiguous as written. For example, request no. 69 states: “You, as an owner, can easily *your [sic] counsel have full capacity to help you with this process) request your phone communication records with Michael, did you request it?” The requests are not drafted in a way that would allow a party to reasonably respond to them.

Set

5

Plaintiff

moves to compel Defendant Murcia to provide further responses to special interrogatories, set five, nos. 75-81.

Defendant

Murcia provided non-evasive responses to nos. 75 and 79. For example, request no. 75 asks if she has ever been convicted of a felony under Insurance Code section 1871.4(a)(1) (misidentified in the interrogatory as Penal Code § 1871.4(a)(1)). Defendant Murcia responded: “Responding Party has never been convicted of a felony.” This is straightforward.

Defendant

Murcia properly objected to nos. 76-77, 80, and 81 on vagueness and relevancy grounds. Many of the interrogatories ask about Murcia’s criminal history and prior convictions in a vague manner, such as: “Have you been convicted/found guilty in crime of moral turpitude?” Plaintiff does not provide a definition of “moral turpitude” in her requests such that the party could reasonably respond. Nor does Plaintiff explain the relevance of such information.

Defendant

Murcia properly objects to request no. 78 as being duplicative of request no. 75.

Sets

4 and 6

Plaintiff

moves to compel Defendant Hidalgo to provide further responses to special interrogatories, set four, nos. 71-78. Plaintiff also moves to compel Defendant Murcia to provide further responses to special interrogatories, set six, nos. 82-89. Because both sets of interrogatories address the same subject matter—i.e., the funding of the litigation—the Court will address them together.

Defendants

properly object to all identified requests based on relevance. Here, Plaintiff generally asks Defendants if there are any third parties funding the litigation, the extent of their involvement in the litigation, and if they would have any interest in the outcome of the litigation. While Plaintiff argues in her separate statement that she is “entitled to know what criminal entity is behind Defendants in this litigation and why they are ‘funding’ Defendants instead of serving time for illegal activities,” she provides no evidence that this is occurring. Even so, it is unclear how this information would bear on the merits of this lawsuit, which is a negligence action in a dog-bite case. Because Plaintiff does not sufficiently substantiate the relevance of the requests, Defendants’ objections are sustained.

Sanctions

Defendants

and Plaintiff move for sanctions against each other. “[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2030.300(d).) Plaintiff unsuccessfully brought these four discovery motions. There is no indication that Plaintiff acted with substantial justification in doing so. She also did not meet and confer in good faith before filing them. Therefore, sanctions against Plaintiff are appropriate.

Defendants

request a total of \$5,500 against Plaintiff. The Court exercises its discretion to reduce the fees requested by one-half. Defendant's opposition briefs are substantially similar to one another and consist only of a four-and-a-half page memorandum of points and authorities. Thus, Defendants are entitled to \$2,750 in sanctions.

The

Court declines to entertain Plaintiff's requests for default judgment, issue, evidentiary, and terminating sanctions, and any other requests to refer parties or counsel to the Los Angeles District Attorney or State Bar.

Disposition

Plaintiff

Alla Anatolyevna Zorikova's four motions to compel further responses to special interrogatories are denied.

Plaintiff

Alla Anatolyevna Zorikova is hereby ordered to pay Defendants \$2,750 in sanctions within 21 days.

Defendants'

Motion to Continue Trial

Defendants

Victoria Murcia and Luis Hidalgo move to continue the trial in this action from September 14, 2026, to a date in February 2027.

Defendants

argue that there are multiple motions before this Court this month, including several discovery motions, a motion for sanctions, and a motion to vacate, all of which impact Defendants' trial preparations. Defense counsel also represents that he has a trial scheduled in another matter beginning September 1, 2026, which may interfere with the present trial date. Defendants also state that they have attempted to discuss settlement and that Plaintiff has allegedly reserved a Mandatory Settlement Conference date for September 10, 2026. (See Miretsky Decl., ¶ 6.)

The Court is not inclined to continue trial in this matter yet again. The

Court will discuss scheduling issues with the parties at the hearing.